

02:00 PM **LINE 3**

24-CIV-08059

JACK RODRIGUEZ VS. GENERAL MOTORS LLC

JACK RODRIGUEZ
GENERAL MOTORS LLC

MARK P. ROMANO
MARY L. ARENS MCBRIDE

Defendant General Motors LLC's Motion for Summary Judgment or Summary Adjudication

TENTATIVE RULING:

Defendant General Motors LLC's Motion for Summary Judgment or Summary Adjudication is **GRANTED in part** and **DENIED in part**.

Plaintiff Jack Rodriguez's Objections to Evidence are **SUSTAINED**.

The notice of motion lists the incorrect location for the hearing. If the tentative ruling is contested, the hearing will be held in Department 28, Courtroom I, located at 800 North Humboldt Street, San Mateo.

The First Amended Complaint (FAC) asserts three causes of action concerning Rodriguez's purchase of a 2021 Chevrolet Tahoe manufactured by defendant General Motors LLC (GM). (See Feb. 25, 2026 FAC, ¶¶ 6–7.) One is for breach of express warranty under the Commercial Code, one is for breach of express warranty under common law, and one is for violation of the Magnuson–Moss Act. (*Id.*, at ¶¶ 9–42.) GM seeks summary judgment or, alternatively, summary adjudication of each of these three causes of action. The parties do not dispute that the cause of action based on the Magnuson–Moss Act is derivative of the other two such that it survives as long as at least one the two warranty causes of action stands.

As a preliminary matter, Rodriguez objects to the format of the separate statement, due to its listing of the material facts just once under the heading “facts common to all issues.” However, the California Rules of Court only require a separate statement to separately identify each cause of action that is the subject of the motion and each supporting material fact claimed to be without dispute with respect to the cause of action that is the subject of the motion. (See Cal. Rules of Court, rule 3.1350(d).) The separate statement substantially complies with these requirements, and the court therefore considers the request for summary adjudication, made in the alternative, on the merits.

A. Legal Standard on Summary Judgment & Summary Adjudication

“A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc., § 437c, subd. (a)(1).) Summary judgment will only be granted “if all the papers submitted

show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (*Id.*, at subd. (c).)

“A party may move for summary adjudication as to one or more causes of action within an action ... if the party contends that the cause of action has no merit ...” (Code Civ. Proc., § 437c, subd. (f)(1).) A cause of action has no merit if one or more of its elements cannot be separately established or an affirmative defense can be established. (*Id.*, at subd. (o).)

A defendant moving for summary judgment or summary adjudication has an initial burden of showing either that one or more elements of a cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) Once the initial burden has been carried, the burden shifts to the opposing party to show that a triable issue of material fact exists as to the cause of action or a defense thereto, as applicable. (*Ibid.*)

The moving party’s ultimate burden of persuasion that there are no issues of triable fact, however, never shifts to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) This burden is unaffected by the strength or weakness of the showing in opposition to the motion (*Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519), and summary judgment must be denied — despite deficiencies in the opposition — if the burden has not been carried. (*Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 416.)

Because summary judgment deprives an adverse party of the right to a trial, any doubts are resolved in favor of the party opposing the motion. (*Huynh v. Ingersoll-Rand* (1993) 16 Cal.App.4th 825, 830; *See’s Candy Shops, Inc. v. Superior Court* (2012) 210 Cal.App.4th 889, 900.) Thus, “[t]he moving party’s affidavits are to be strictly construed, and ... all conflicts in the affidavits are to be resolved in favor of the opposing party and all reasonable inferences are to be drawn in favor of that party as well.” (*Hufft v. Horowitz* (1992) 4 Cal.App.4th 8, 20.)

B. Breach of Warranty Under Commercial Code

According to GM, privity between the plaintiff and defendant is required to hold a defendant liable for breach of an express warranty under the Commercial Code. GM relies on *Ballesteros v. Ford Motor Co.* (2025) 109 Cal.App.5th 1196 (*Ballesteros*), which stated: “The Commercial Code’s express warranty provisions are limited to warranties given by the seller directly to the buyer.” (*Id.*, at p. 1216.)

Rodriguez contends this statement of law should be disregarded as dicta. But the proposition was essential to the court’s analysis and thus part of the holding. In *Ballesteros*, the defendant vehicle manufacturer attempted to enforce an arbitration agreement contained in the sales contract between the plaintiff and the dealership who sold the car. (*Ballesteros, supra*, 109 Cal.App.5th at p. 1201.) The manufacturer argued that, according to the Commercial Code, the express warranty on which the plaintiff’s claims were based was part of the sale contract and thus the plaintiff was estopped from disputing the enforceability of the arbitration agreement. (*Id.*, at p. 1205.) Had there been privity between the plaintiff and the manufacturer, the warranty *would* be governed by the Commercial Code and *would* be part of the sale contract. (*Id.*, at pp. 1216–

1217.) *Davis v. Nissan North America, Inc.* (2024) 100 Cal.App.5th 825, 838–842, cited by the *Ballesteros* court, holds the same.

Of the California cases that Rodriguez cites suggesting that privity is not required for breach of express warranty *under the Commercial Code specifically*, none actually held the Commercial Code permits exceptions. For example, in *Hauter v. Zogarts* (1975) 14 Cal.3d 104, in “confront[ing] for the first time the California Uniform Commercial Code provisions relating to warranties,” the California Supreme Court noted that “[p]rivacy is not required for an action based upon an express warranty.” (*Id.*, at p. 114 & fn. 8.) But, it only did so in passing: the court was “not called upon in this case to resolve” issues raised by the supplantation of the former Uniform Sales Act and “[t]he parties [did] not discuss the changes wrought by the Uniform Commercial Code.” (*Id.*, at pp. 116–117.) Similarly, the Court of Appeal stated in *Dagher v. Ford Motor Co.* (2015) 238 Cal.App.4th 905 that “some express warranty claims [were] viable in this action, whether under the Commercial Code or Magnuson–Moss,” for a plaintiff not in direct privity, but only because the defendant manufacturer had conceded it and the issue was not in dispute in the case. (*Id.*, at p. 928.)

While it appears no California case is squarely on all fours with the present case and procedural posture, the law provides that direct privity is required for an express warranty claim brought solely under the Commercial Code.

Thus, by presenting undisputed evidence that GM did not sell the vehicle to Rodriguez, make any representations to Rodriguez, or provide any samples or models to Rodriguez (Feb. 27, 2026 Separate Statement [Def. Sep. Stmt.] no. 9) — apart from the express warranty being sued upon — GM has established that there is no issue of material fact to be tried regarding the cause of action for breach of express warranty under the Commercial Code.

C. Breach of Express Warranty Under Common Law

While a claim without privity under the Commercial Code may not be viable, the law is abundantly clear that privity is not required for a breach of express warranty under the common law: “privity is not a requirement for actions based upon an express warranty.” (*Rodrigues v. Campbell Industries* (1978) 87 Cal.App.3d 494, 500; accord *Seely v. White Motor Co.* (1965) 63 Cal.2d 9, 14; *Burr v. Sherwin Williams Co.* (1954) 42 Cal.2d 682, 696; *Fundin v. Chicago Pneumatic Tool Co.* (1984) 152 Cal.App.3d 951, 957.)

GM admits, and its own evidence establishes, that the vehicle was covered by an express warranty that — by its own terms — extended to Rodriguez. (Def. Sep. Stmt., nos. 6–8; see Feb. 27, 2026 Declaration of Bryan Jensen, exh. C, at p. 4 [“This warranty ... is provided to the original and any subsequent owners of the vehicle during the warranty period”].) GM does not provide any evidence or argument that any other element of the cause of action cannot be established at trial, and thus fails to carry its initial burden of providing evidence sufficient to make out a prima facie case.

D. Conclusion

For the foregoing reasons, the motion for summary judgment is **DENIED**. The motion for summary adjudication is **GRANTED** as to the second cause of action and **DENIED** as to the first and third causes of action.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 4**

25-CIV-00601

KEVIN RAMOS VS. SAN MATEO COUNTY TRANSIT DISTRICT, ET AL.

KEVIN RAMOS
SAN MATEO COUNTY TRANSIT DISTRICT

PRO SE
DANIELLE K. LEWIS

Plaintiff's Motion to Compel Further Responses Regarding the Defendant's Responses to Form Interrogatories Set 2

TENTATIVE RULING:

Initially, the court notes that plaintiff has not provided the complete address for the hearing. Department 28 is located at the Central Courthouse, Courtroom I, 800 North Humboldt Street, San Mateo, CA 94401. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

Plaintiff Kevin Ramos' *1st Amended ... Motion to Compel Further Responses Regarding the Defendant's Responses to Form Interrogatories Set 2* is **GRANTED in part**.

A. Background

In his Second Amended Complaint (SAC), plaintiff alleges that on May 17, 2024, he suffered damages from having been assaulted by a fellow passenger on a bus operated by defendant San Mateo County Transit District (SamTrans).

The court granted two anti-SLAPP motions brought against plaintiff's First Amended Complaint, one by SamTrans and defendants Steve Wagman and Marshall Rush (Order, signed on October 22, 2025), and the other by defendant Ann Lee (Order, signed on November 4, 2025), as to the second through eighth causes of action. The only remaining cause of action in the SAC, for "Premises Liability/Negligent Security," is pled solely against SamTrans.

Defendant responded to plaintiff's Form Interrogatories (FROGs) Set #2 on December 29, 2025. (Ramos Decl., ¶ 2.) Plaintiff filed an initial version of this Motion on January 12, 2026. However, the January 2026 hearing of that motion was ordered off-calendar, and an informal discovery conference (IDC) scheduled instead. (Order, January 16, 2026.) A further version of the Motion was filed on March 5, 2026, and the instant Motion was filed on June 22, 2026. Because June 22, 2026 was the last day to file a motion for hearing on July 15, 2026 (Code Civ. Proc., § 1005, subd. (b)), the court regards the moving papers filed on June 22, 2026, to be the operative motion, and disregards the earlier-filed papers.

Except for a proof of service of the first version of the Motion filed on January 16, 2026, no other proof of service has been filed listing either the March version nor the June 22 version of the motion considered here. However, defendant has waived any defects in or irregularities of
